

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

**COMPLAINANT’S SECOND MOTION FOR AN EXTENSION OF TIME TO FILE A
RESPONSE TO RESPONDENTS PETITION REGARDING ATTORNEYS FEES**

Pursuant to Rules 26, 69, 71, and 102, of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), complainant, through its counsel, Marcus A. Nussbaum, Esq. respectfully submits this motion to the Commission for an extension of time to file a Response to respondents’ Petition Regarding Attorneys Fees.

In the alternative, complainant moves for a stay of proceedings so that complainant may obtain crucial evidence material and necessary to oppose respondents’ Petition in the form of deposition testimony of the Special Master who presided over respondents’ waiver of the right to seek attorneys fees in the instant case, as explained below.

ARGUMENT

Complainant has respectfully requested a further extension of time within which to file their response to respondents’ Petition Regarding Attorneys Fees in order to prevent the perpetration of an outright fraud against the Commission and complainant alike.

Specifically, respondent, Michael Hitrinov (“Hitrinov”) expressly waived all rights to seek attorneys fees in the instant matter as part of a Settlement Agreement entered into between Hitrinov and complainant, Baltic Auto Shipping Inc. and its principal Andrejus Presniakovas in the now closed case of *Empire United Lines Co., Inc. et al. v. Baltic Auto Shipping, Inc. et al.* (U.S.D.C. – D.N.J., 15 Civ. 355).

It has been and remains complainant’s intention to provide the Commission with a copy of Settlement Agreement, inclusive of the language regarding such waiver. To that end, complainant has had communications with the Special Master who presided over the negotiation of the said Settlement Agreement, Hon. Dennis M. Cavanaugh so that he may Certify and otherwise attest to the validity and accuracy of said Settlement Agreement.

Additionally, Judge Cavanaugh can attest to the fact that it was Hitrinov and his counsel, Jon Werner (who has now appeared in the instant matter by filing the subject Petition) who drafted the Settlement Agreement and specifically insisted upon the inclusion of a waiver of all rights to seek attorneys fees in the instant case, as evidenced by an email copied to Judge Cavanaugh which he can further certify and otherwise attest to.

Regrettably, and to the time of this writing, Judge Cavanaugh has evinced an unwillingness to “get involved”; this, despite having presided over and having full knowledge of the proceedings, and despite having realized attorneys fees totaling over \$20,000 by reason of his service as a Special Master.

Having thus been unable to secure Judge Cavanaugh’s voluntary cooperation, complainant is now compelled to resort to the service of a Subpoena for a non-party witness deposition of Judge Cavanaugh so that he may be compelled to do that which he is unwilling to do voluntarily, to wit: Certify and attest to facts which establish the attempted perpetration of a fraud upon the Commission and complainant through the relief that respondents have wrongfully sought.

Consequently, and upon the Commission's granting of complainant's instant application for a further extension of time within which to interpose a response to respondents' Petition, complainant will file, under separate cover, a letter request for the issuance of a Subpoena so that Judge Cavanaugh as former Special Master may be questioned under oath as to the certification and attestation set forth above.

While it is deemed regrettable that complainant has been compelled to resort to subpoena a former Federal Court Judge to do that which should have been voluntarily proffered, complainant cannot suffer to be defrauded and otherwise bilked for an excess of Ninety Thousand Dollars (\$90,000) rather than inconvenience a former jurist who simply "prefers not to involve himself any further in this matter".

Accordingly, it is respectfully submitted that the foregoing constitutes a good faith basis for the seeking of a further extension of time to oppose respondents' Petition in order to prevent the perpetration of a fraud upon the Commission and complainant by respondents and their counsel.

In closing, the Commission is respectfully asked to take note of its own Rule of Practice and Procedure Rule 26, 46 CFR §502.26 which sets forth modes of professional conduct which appears to have been violated by the attempted act of fraud now pending before the Commission in the form of respondents' instant Petition.

The undersigned has attempted to confer with counsel for respondents regarding the instant application, who have not consented to the instant request for an extension of time.

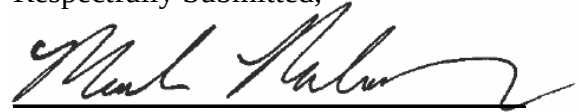
Finally, and upon the Commission's granting of complainant's instant request for a further extension and the forthcoming request for issuance of a subpoena, it is further respectfully requested that complainant be granted a sufficient extension of time necessary to serve the subpoena upon Judge Cavanaugh, as well as to schedule and conduct his deposition.

Accordingly, and in light of the foregoing, complainant respectfully requests that their time within which to interpose a Response to respondents' instant Petition be extended to a date certain at the Commission's discretion. In the alternative, complainant moves for a stay of proceedings so that complainant may obtain crucial evidence material and necessary to oppose respondents' Petition in the form of deposition testimony of the Special Master who presided over respondents' waiver of the right to seek attorneys fees in the instant case.

WHEREFORE, it is respectfully requested that Complainant's instant motion for an extension of time within which to interpose a Response to respondents' instant Petition Regarding Attorneys Fees, or for a stay of proceedings be granted in its entirety, together with such other and further relief as the Commission may deem just and proper under the circumstances.

Dated: August 15, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
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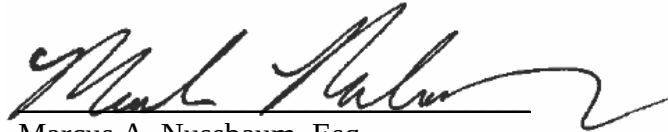
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANT'S SECOND MOTION FOR AN EXTENSION OF TIME TO FILE A RESPONSE TO RESPONDENTS PETITION REGARDING ATTORNEYS FEES** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
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Attorney for Respondents

Gerard S. Doyle, Jr.
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Attorneys for Respondents
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by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

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Dated: Brooklyn, New York
August 15, 2017